

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. 5-00-076

WASTE DISCHARGE REQUIREMENTS
FOR
YUBA COUNTY MOTORPLEX AND AMPHITHEATER
YUBA COUNTY MOTORPLEX, LIMITED LIABILITY COMPANY
BILL GRAHAM ENTERPRISES, YUBA LIMITED LIABILITY COMPANY
YUBA COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Board) finds that:

1. Yuba County Motorplex, Limited Liability Company (YCM) and Bill Graham Enterprises, Yuba Limited Liability Company (BGE) (hereafter jointly referred to as Discharger or as YCM or BGE) submitted two documents that comprise the Report of Waste Discharge for construction of a wastewater treatment system. The first document is the "Wastewater Management Alternatives for the Yuba County Motorplex/Engineering Report of Waste Discharge" prepared by CH2M Hill and dated 13 August 1999. The second document submitted is the "Supplement to the Engineering Report of Waste Discharge dated 17 January 2000 for the Yuba County Motorplex Wastewater Facility."
2. YCM and BGE propose to construct a motorplex, drag strip, 1.5-mile street circuit, amphitheater, and several small businesses and services in the parcels that are noted below in Finding No. 7. This public entertainment facility will collectively be called the Yuba County Motorplex and Amphitheater. Activities are planned year-round with maximum attendance expected May through October of each year associated with the Championship Auto Racing Teams races and large Bill Graham Presents events.
3. YCM and BGE shall be responsible for compliance with these Waste Discharge Requirements as it applies to each entity's own parcel of land noted below in Finding No. 7 and as ordered below.
4. YCM will be responsible for the operation and maintenance of the wastewater treatment plant including the collection system and land application of the wastewater.
5. BGE will not own or operate the wastewater treatment plant. These Waste Discharge Requirements therefore establish individual responsibilities for BGE. A domestic wastewater collection system for the amphitheater, which gravity flows into a wet well will be owned and operated by BGE. The wet well will pump into a dedicated force main that will flow into the wastewater treatment plant. Collection, transportation, treatment, and disposal beyond the wet well and the BGE property line in YCMs force mains and treatment plant will be the responsibility of YCM.
6. Yuba County Motorplex and Amphitheater is situated in Yuba County Sections 14, 15, 22, 23, 24, 26, and 27 T15N, R1E, MDB&M, as shown in Attachment, "A" which is attached hereto and made part of this Order..

WASTE DISCHARGE REQUIREMENTS ORDER NO. 5-00-076
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7. The Discharger owns 905.12 acres of real property located at 2793 Forty Mile Road in Yuba County. The properties owned by YCM are Assessor's Parcel Numbers (APN) 014-280-062 (11.63), 014-280-085 (41.32 ac), 014-280-086 (622.44 ac), 014-280-088 (30.43 ac), and 014-280-089 (109.3 ac). The property owned by BGE is APN 014-410-026 (90 ac). The wastewater treatment facility is located on YCM property APN 014-280-089 with Latitude and Longitude of 39° 02' 37" and 121° 29' 30" respectively.
8. The proposed treatment plant will accept only domestic wastewater from the parcels listed above. The wastewater facility design is based on domestic waste only from motorplex and amphitheater event flows added to "baseline flows generated by year-round operations staff, nearby motels, restaurants, fast food, and gas stations mini-marts that are located on-site." However, because the wastewater treatment and disposal system is not designed for industrial wastes, this Order allows for only domestic wastewater disposal at the Discharger's wastewater treatment plant.
9. The Discharger proposes to discharge approximately 19.9 million gallons per year at build out (anticipated in the year 2010), with a maximum daily discharge of 0.575 million gallons and monthly maximum discharge of 2.953 million gallons each October. The treatment plant consists of a collection system with up to three wet wells, two side by side force mains, headworks, four aerated ponds (70' x 140' each), 112 acre-feet of storage in the holding pond, and disposal by border check flood irrigation to 36 acres of perennial grass hay crop. The facility is shown in Attachment B, which is attached hereto and made a part of this Order.
10. YCM intends to construct the wastewater treatment plant in two phases, as the Yuba County Motorplex is fully developed. Phase one will consist of all facility components from the collection system up to and including the aerated ponds as designed for build out capacity; however, the holding pond (33 acre-feet) and disposal area (13 acres) will only have enough capacity to treat and dispose of 8.34 million gallons annually. The anticipated completion for Phase Two is the year 2005; holding capacity will be increased from 33 to 112 acre-feet and the land reclamation disposal area increased from 13 to 36 acres.
11. The force mains connecting BGE and YCM to the plant will traverse the South Yuba Water District's Main Canal and the Alfaro Lateral Canal. Each crossing will take place at least three feet beneath each canal inside a straight, continuous steel liner pipe. A vertical monitor pipe open to the annular space between the liner and force mains will be installed. The Board is aware that YCM is in the process of obtaining access rights from all easement and/or property owners to construct the collection system.
12. All automotive service and maintenance garage areas will be equipped with returnable style drums for both parts washing and the recovery of waste fluids. These drums, when full, will be substituted for empties by the recycler. A central collection point for automotive fluid recyclables will be established during events and teams will be advised of the location and required by event regulations to dispose of waste only at the appropriate location, or any satellite location that might

be provided for larger events. Non-compliance will result in entry disqualification and team ejection.

13. The wastewater treatment level provided prior to land application does not include disinfection for human pathogens. Therefore, as required by the State Department of Health Services, tailwater from the land application is to be fully contained and returned year round to the holding pond. Any storm water that falls upon the land reclamation disposal area must also be collected and returned to the holding pond.
14. YCM will provide independent onsite backup power generation with sufficient power to run the collection system and necessary plant pumps and aerators to control odors during power outages. BGE shall provide independent onsite backup power generation with sufficient power to run the collection system and wet well on BGE property.
15. YCM designed the 36 acre land reclamation disposal area based on the collection of all storm water and tailwater, an annual flow at build out of 19,897,700 gallons per year, the wastewater containing a Biochemical Oxygen Demand of 30 mg/l and Total Nitrogen as N of 40 mg/l, and a grass hay crop up taking nitrogen at a rate of approximately 225 lbs/ac.
16. Wastewater will be applied to the land reclamation disposal area at an agronomic rate, from approximately April to October each year. The disposal area sizing is based on the nitrogen load as the controlling factor. Irrigation makeup water is necessary to meet the crop's annual water requirement. The crop will be cut and removed from the site in four to six cuttings annually with reestablishment every five to six years. The perennial crop has been selected to reduce the necessary farming activity to grow and harvest the grass hay.
17. An agricultural well will be installed to provide additional irrigation water during the month of September. The well will be at least 100 feet from the wastewater ponds and disposal field. Water well supply piping for the makeup water and the site usage water will employ double check valves and air gaps to provide cross connection control.
18. Groundwater monitoring wells will be installed to observe the effects of the waste discharge on groundwater quality. Soil in the application area generally consists of a moderately permeable loam from surface to three feet below ground surface (bgs), underlain by a low permeable clay pan and duripan substrata from three to seven feet bgs. Seasonal perched water can be found during the winter above the duripan, while a lower water-bearing zone is historically reported to be located from 20 to 80 feet bgs. Natural groundwater gradient, level, and quality will be established prior to wastewater treatment and application.
19. YCM was unable to submit certain geologic information requested by staff. This information was necessary to show that the ponds would not adversely affect the quality of the underlying groundwater. On 14 March 2000, YCM stated that lining the treatment and storage ponds to a

hydraulic conductivity of no greater than 1×10^{-7} cm/sec would be protective of groundwater. Therefore, this Order requires that all six ponds be lined with a material providing a hydraulic conductivity of 1×10^{-7} cm/sec. Alternatively, YCM may demonstrate that the native material underlying the ponds provides this level of protection.

20. YCM intends to fence the treatment facility and disposal area to preclude public access. Placards will be posted to give notice of sewage treatment and wastewater disposal on the fencing. All wastewater treatment ponds and the border check flood irrigation application area will maintain a 100-foot set back from the property line as well as a 500-foot set back requirement for all drinking water wells and a 100-foot setback from irrigation wells.
21. The treatment facility maintenance will consist of regular daily observation to evaluate proper facility operation. This information will be kept on location with the operations manual.
22. The Board adopted a Water Quality Control Plan, Fourth Edition, for the Sacramento River and the San Joaquin River Basins (hereafter Basin Plan), which designates beneficial uses and water quality objectives for waters of the Basins. These requirements implement the Basin Plan.
23. The beneficial uses of the underlying ground water are domestic, industrial, and agricultural supply.
24. The Basin Plan encourages reclamation.
25. Surface water drainage is to an unnamed tributary of Best Slough, which is in turn tributary to the Bear River. The site is located in the Olivehurst Hydrologic Area near the confluence of the Bear and Feather Rivers.
26. The existing beneficial uses of the Bear and Feather Rivers are municipal, industrial, and agricultural supply; recreation; esthetic enjoyment; navigation; ground water recharge; stock watering, power, contact recreation, canoeing and rafting, non-contact recreation, warm and cold freshwater habitat, warm and cold water migration, warm and cold water spawning, and wildlife habitat.
27. Yuba County adopted a Negative Declaration for the wastewater treatment plant on 7 March 2000. The Regional Board has considered the Negative Declaration and has determined that these waste discharge requirements contain requirements that will mitigate or avoid significant environmental effects of the wastewater treatment plant.
28. This discharge is exempt from the requirements of *Consolidated Regulations for Treatment, Storage, Processing, or Disposal of Solid Waste*, as set forth in Title 27, CCR, Division 2, Subdivision 1, Section 20005, et seq., (hereinafter Title 27). The exemption, pursuant to Section 20090(b), is based on the following:

- a. The Board is issuing waste discharge requirements, and
 - b. The discharge complies with the Basin Plan, and
 - c. The waste material does not need to be managed according to Chapter 11, Division 4.5, Title 22, of the CCR as a designated or hazardous waste.
29. The Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for this discharge and has provided them with an opportunity for a public hearing and a 30-day opportunity to submit their written views and recommendations.
30. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that Yuba County Motorplex, Limited Liability Company (YCM), its agents, successors, and assigns, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereby, shall comply with the following:

A. Discharge Prohibitions:

1. Discharge of wastes to surface waters or surface water drainage courses is prohibited.
2. By-pass or overflow of untreated or partially treated waste is prohibited.
3. Discharge of waste classified as 'hazardous,' as defined in Sections 2520 & 2521(a) of Chapter 15, or 'designated,' as defined in Section 13173 of the California Water Code, is prohibited.
4. The discharge of waste to the treatment plant from parcels other than those listed in Finding No. 7 and by Dischargers other than those listed in Finding No. 1 is prohibited.
5. The discharge of any wastewater other than that from domestic sources is prohibited.
6. The discharge of any tailwater or storm water from the disposal field is prohibited.
7. The storage or disposal of wastewater within 500-feet of any domestic well, or 100-feet of any irrigation well, or watercourse is prohibited.
8. Land spreading of sludge on the 36-acre wastewater disposal area is prohibited.

B. Discharge Specifications:

1. In the event that the Negative Declaration is determined in a legal proceeding not to comply with CEQA or a stay by a court has been granted, YCM shall cease all discharge to the wastewater treatment plant. YCM shall continue to operate and maintain the plant

and comply with this Order until the plant can be adequately decommissioned or until either YCM or BGE can provide new CEQA compliance documentation to the Board.

2. Neither the treatment nor the discharge shall cause a pollution or nuisance as defined by the Porter-Cologne Water Quality Control Act, Section 13050.
3. For Phase One, the maximum wastewater discharge flow for evaporation and percolation utilizing the land reclamation disposal system shall not exceed 300,000 gallons per day, 1,758,000 gallons in any one-month, or 8,341,700 gallons per year.
4. The Phase One flow specification stated in Specification B. 3 above shall remain in effect until the Executive Officer has received confirmation of the facility upgrade and has issued written approval confirming the upgrade for Phase Two flow has been completed. For Phase Two, the maximum wastewater discharge flow for evaporation and percolation utilizing the land reclamation disposal system shall not exceed 575,000 gallons per day, 2,953,000 gallons in any one-month, or 19,897,700 per year.
5. A State Water Resources Control Board Grade I licensed wastewater treatment plant operator shall be responsible for the day-to-day operations at the Yuba County Motorplex Wastewater Treatment Plant.
6. Wastewater is to be applied at agronomic rates such that there shall be no standing water in the irrigation disposal area 48 hours after wastewater is applied.
7. No aerosol drift from the wastewater treatment or application area shall migrate out of the designated treatment or disposal areas.
8. The use of reclaimed water shall be limited to surface irrigation of fodder, fiber, or seed crops and shall comply with the Department of Health Services' guidelines for the use of reclaimed water. All tailwater and storm water from the disposal field must be returned to the storage pond throughout the entire year.
9. YCM shall provide independent on-site backup power generation with sufficient power to run the collection system and necessary plant pumps and aerators to control odors during power outages.
10. The waste discharge shall remain in the designated disposal areas at all times.
11. YCM shall comply with applicable regulation criteria set forth in Title 22, Division 4, Section 60301 et seq., CCR.

12. Grazing of lactate producing animals within the irrigated area is prohibited.
13. Public contact with wastewater and reclaimed water shall be precluded through such means as fences, placards, and irrigation management practices.
14. Objectionable odors originating at this facility shall not be perceivable beyond the limits of the wastewater collection, treatment, and disposal areas.
15. As a means of discerning compliance with Discharge Specification No. 14, the dissolved oxygen content in the upper zone (1 foot) of the wastewater ponds and storage ponds shall not be less than 1.0 mg/l.
16. Effluent from the storage ponds shall not exceed the following monthly average limits:

<u>Constituents</u>	<u>Limit</u>	<u>Units</u>
BOD ₅ ¹	30	mg/l
Total Suspended Solids	60	mg/l
Settleable Solids	0.1	ml/l
Total Nitrogen	40	mg/l as N
Phosphorus	14	mg/l as P
pH	6.5 to 8.5	pH units

¹ 5-day, 20°C Biochemical Oxygen Demand

17. The limit for Total Dissolved Solids (TDS) in the effluent to the land reclamation area shall not be greater than 300 mg/l. YCM shall require tenants to utilize best management practices to reduce TDS in the discharge.
18. The discharge to the ponds or disposal area shall not have a pH less than 6.5 or greater than 8.5.
19. The discharge shall not cause degradation of any water supply.
20. Ponds and reclamation disposal areas, as shown in Attachment B, shall be managed to prevent breeding of mosquitoes. In particular,
 - a. An erosion control program should assure that small coves and irregularities are not created around the perimeter of the water surface.
 - b. Weeds shall be minimized through control of water depth, harvesting, or herbicides.
 - c. Dead algae, vegetation, and debris shall not accumulate on any water surface.

21. Plant and disposal area design shall be constructed, operated, and maintained to prevent inundation or washout due to flood, storm, or an entire winter season with a 100-year return frequency.
22. Ponds shall have sufficient capacity to accommodate allowable wastewater flow and design seasonal precipitation and ancillary inflow and infiltration during the non-irrigation season and collection of all tailwater and storm water from the disposal field. Design seasonal precipitation shall be based on total annual precipitation using a return period of 100 years, distributed monthly in accordance with historical rainfall patterns.
23. Ponds and disposal area freeboard shall never be less than two feet (measured vertically to the lowest point of overflow).
24. Before 1 October of each year, the Discharger shall submit calculations showing that available pond storage capacity shall at least equal the volume necessary to comply with Discharge Specifications No. 22 and 23. If the calculations show that the Discharger cannot meet the capacity requirements of this Order, then the Discharger shall immediately cease accepting wastewater into the treatment plant. Acceptance of wastewater may resume only after the Discharger has submitted new calculations showing that there is sufficient volume and the Executive Officer has approved the calculations in writing.
25. The sides and bottom of all treatment and storage ponds shall be constructed with 12" of material with a hydraulic conductivity of not greater than 1×10^{-7} cm/sec or any equivalent material.
26. YCM shall comply with all applicable state and local regulations and ordinances, including County Ordinance 7.07 (Sewage Disposal).

C. Sludge Disposal:

1. Collected screenings, sludge, grease and oil, and other solids removed from liquid wastes shall be disposed of in a manner that is consistent with CCR, Title 27 and approved by the Executive Officer.
2. Use and disposal of sludge shall comply with existing Federal and State laws and regulations, including permitting requirements and technical standards included in 40 CFR part 503.

If the State Water Resources Control Board and the Regional Water Quality Control Boards are given the authority to implement regulations contained in the 40 CFR part 503, this Order may be reopened to incorporate appropriate time schedules and technical

standards. The Discharger must comply with the standards and time schedules contained in 40 CFR part 503 whether or not they have been incorporated into this Order.

3. Any proposed change in sludge use or disposal practice from a previously approved practice should be reported to the Executive Officer and US Environmental Protection Agency Regional Administrator at least 90 days in advance of the change.

D. Groundwater Limitations:

The discharge, in combination with other sources, shall not cause underlying groundwater to contain waste constituents in concentrations statistically greater than background water quality, except for coliform. For coliform, increases shall not cause the most probable number of total coliform organisms to exceed 2.2/100 ml over any 7-day period.

E. Provisions:

1. YCM is required to install monitor wells for the purposes of monitoring the effects of the proposed wastewater treatment system on groundwater. Groundwater monitoring of the perched water on the clay and duripan substrata as well as first groundwater beneath the substrata is required. The Discharger shall submit a workplan for installation of groundwater monitoring wells. In order to determine background water quality, a report containing the monitoring well installation information and sample data results shall be submitted to the Board. Wastewater may not be accepted at the plant until the Executive Officer has approved the report.
2. For each treatment and storage pond, YCM shall submit a report showing compliance with Discharge Specification No. 25. Wastewater may not be discharged to an individual pond until the Executive Officer has approved the report showing that the pond complies with Specification No. 25.
3. By 1 May 2000, YCM shall develop an Operations and Maintenance (O & M) Manual. Operating personnel shall keep a copy of the O & M Manual at the Yuba County Motorplex/Amphitheater wastewater plant site for reference. Operating personnel shall be familiar with its contents and location, and it shall be made available for review during Regional Board inspection. Items to be kept with the O & M Manual are as follows:
 - a. Operation and maintenance records to include equipment maintenance schedules, operator logs, MRP self-monitoring reports, system upsets, and personnel training.
 - b. Emergency response plan to include a spill response plan for hazardous materials, raw sewage, and/or partially treated sewage.

4. By 1 May 2000, YCM shall provide a sludge disposal plan.
5. By 1 May 2000, YCM shall submit domestic waste spill prevention, emergency response, containment, and spill cleanup waste products disposal plan for the wastewater treatment plant and the collection system and all of its components on all parcels listed in Finding No. 7.
6. **90 days prior to the commencement of any facility proposing to use or store hazardous materials**, YCM shall submit a hazardous material spill prevention, emergency response, containment, and disposal plan (Hazmat Plan) for all racing areas or other business and/or service developments that may use hazardous material. In the event additional facilities proposing to use hazardous materials are later added, the Hazmat Plan shall be so modified to include new facilities.
7. YCM shall comply with the Monitoring and Reporting Program (MRP) No. 5-00-076, which is part of this Order, and any revisions thereto as ordered by the Executive Officer.
8. YCM shall use the best management practicable currently available for cost effective control techniques to meet Basin Plan salinity goals.
9. YCM shall comply with the "Standard Provisions and Reporting Requirements for Waste Discharge Requirements," dated 1 March 1991, which are attached hereto and by reference a part of this Order. This attachment and its individual paragraphs are commonly referenced as "Standard Provision(s)."
10. YCM shall report promptly any material change or proposed change in the discharge character, location, or volume and/or the treatment train and/or the wastewater treatment facility components.
11. YCM shall comply with all conditions of this Order, including timely submittal of technical and monitoring reports as directed by the Executive Officer. Violations may result in enforcement action, including Regional Board or court orders requiring corrective action or imposing civil monetary liability, or in revision or rescission of this Order.
12. At least 90 days prior to termination or expiration of any lease, contract, or agreement involving disposal or reclamation areas, used to justify the capacity authorized herein and assure compliance with this Order, YCM shall notify the Board in writing of the situation and of what measures have been taken or are being taken to assure full compliance with this Order.

13. In the event of any change in control or ownership of land or waste discharge facilities described herein, YCM shall notify the succeeding owner or operator of the existence of this Order by letter, a copy of which shall be immediately forwarded to this office.
14. YCM shall immediately notify the Board by telephone whenever a violation or an adverse condition occurs as a result of the wastewater treatment operations or the disposal; a written confirmation providing a complete description of the event shall follow within one week.
15. Operating personnel shall keep a copy of this Order at the Yuba County Motorplex site for reference. Key operating personnel shall be familiar with its contents.
16. The Board will review this Order periodically and will revise requirements when necessary.
17. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that Bill Graham Enterprises, Yuba Limited Liability Company (BGE), its agents, successors, and assigns, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereby, shall comply with the following:

F. Discharge Prohibitions:

1. Discharge of wastes to surface waters or surface water drainage courses is prohibited.
2. By-pass or overflow of untreated or partially treated waste is prohibited.
3. In the event that YCM is unable or unwilling to accept wastewater into its collection system or treatment plant, then BGE shall immediately cease any discharge.
4. Discharge of waste classified as 'hazardous,' as defined in Sections 2520 & 2521(a) of Chapter 15, or 'designated,' as defined in Section 13173 of the California Water Code, is prohibited.
5. The discharge of waste to the treatment plant from parcels other than those listed in Finding No. 7 and by Dischargers other than those listed in Finding No. 1 is prohibited.
6. The discharge of any wastewater other than that from domestic sources is prohibited.
7. The disposal of any sludge on BGE property is prohibited.

G. Discharge Specifications:

1. In the event that the Negative Declaration is determined in a legal proceeding not to comply with CEQA or a stay by a court has been granted, then BGE shall cease all discharge to the wastewater treatment plant until BGE or YCM can provide new CEQA compliance documentation to the Board.
2. The maximum wastewater flow leaving BGE property shall not exceed an instantaneous 600 gpm or in one day 130,000 gallons or 390,000 gallons in a three-day period.
3. Neither the treatment nor the discharge shall cause a pollution or nuisance as defined by the Porter-Cologne Water Quality Control Act, Section 13050.
4. No aerosol drift from the wastewater treatment shall migrate out of the designated treatment areas.
5. The waste discharge shall remain in the designated disposal areas at all times.
6. BGE shall comply with all applicable state and local regulations and ordinances, including County Ordinance 7.07 (Sewage Disposal).
7. Public contact with wastewater water shall be precluded through such means as fences, placards, and irrigation management practices.
8. Objectionable odors originating at this facility shall not be perceivable beyond the limits of the wastewater collection system.
9. BGE shall employ Best Management Practices (BMPs) and require any tenants to utilize BMPs to reduce TDS in the discharge.
10. The discharge shall not cause degradation of any water supply.
11. BGE shall design, construct, operate, and maintain its collection system and wet well to prevent inundation or washout due to flood, storm, or an entire winter season with a 100-year return frequency.

H. Sludge Disposal:

Collected screenings, sludge, grease and oil, and other solids removed from liquid wastes shall be disposed of in a manner that is consistent with CCR, Title 27 and approved by the Executive Officer.

I. Provisions:

1. By 1 May 2000, BGE shall develop an Operations and Maintenance (O & M) Manual. Operating personnel shall keep a copy of the O & M Manual at the Amphitheater site for reference. Operating personnel shall be familiar with its contents and location, and it shall be made available for review during Regional Board inspection. Items to be kept with the O & M Manual are as follows:
 - a. Operation and maintenance records to include equipment maintenance schedules, operator logs, MRP self-monitoring reports, system failures or spills, and personnel training.
 - b. Emergency response plan to include a spill response plan for hazardous materials and raw sewage.
2. By 1 May 2000, BGE shall provide a sludge disposal plan.
3. By 1 May 2000, BGE shall submit domestic waste spill prevention, emergency response, containment, and spill cleanup waste products disposal plan for the collection system and wet well on the parcel listed in Finding No. 7.
4. BGE shall comply with its specific portions of Monitoring and Reporting Program (MRP) No. 5-00-076, which is part of this Order, and any revisions thereto as ordered by the Executive Officer.
5. BGE shall use the best management practicable currently available for cost effective control techniques to meet Basin Plan salinity goals.
6. BGE shall comply with the "Standard Provisions and Reporting Requirements for Waste Discharge Requirements," dated 1 March 1991, which are attached hereto and by reference a part of this Order. This attachment and its individual paragraphs are commonly referenced as "Standard Provision(s)."
7. BGE shall report promptly any material change or proposed change in the discharge character, location, or volume and/or the treatment train and/or the wastewater treatment facility components.
8. BGE shall comply with all conditions of this Order, including timely submittal of technical and monitoring reports as directed by the Executive Officer. Violations may result in enforcement action, including Regional Board or court orders requiring corrective action or imposing civil monetary liability, or in revision or rescission of this Order.

9. At least 90 days prior to termination or expiration of any lease, contract, or agreement involving disposal or reclamation areas, used to justify the capacity authorized herein and assure compliance with this Order, BGE shall notify the Board in writing of the situation and of what measures have been taken or are being taken to assure full compliance with this Order.
10. In the event of any change in control or ownership of land or waste discharge facilities described herein, BGE shall notify the succeeding owner or operator of the existence of this Order by letter, a copy of which shall be immediately forwarded to this office.
11. BGE shall immediately notify the Board by telephone whenever a violation or an adverse condition occurs as a result of the wastewater treatment operations; a written confirmation providing a complete description of the event shall follow within one week.
12. Operating personnel shall keep a copy of this Order at the Amphitheater site for reference. Key operating personnel shall be familiar with its contents.
13. The Board will review this Order periodically and will revise requirements when necessary.

I, GARY M. CARLTON, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 17 March 2000.


GARY M. CARLTON, Executive Officer

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

MONITORING AND REPORTING PROGRAM NO. 5-00-076
FOR

YUBA COUNTY MOTORPLEX AND AMPHITHEATER
YUBA COUNTY MOTORPLEX, LIMITED LIABILITY COMPANY
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YUBA COUNTY

This monitoring and reporting program (MRP) incorporates requirements for monitoring of the stored effluent, land reclamation influent, and groundwater, and is issued pursuant to Water Code Section 13267. The Discharger shall not implement any changes to this MRP unless and until a revised MRP is issued by the Executive Officer. Regional Board staff prior to implementation of sampling activities shall approve specific sample station locations. Sample collection stations shall be established such that the samples collected are representative of the nature and volume of the material(s) sampled.

INFLUENT AERATION POND MONITORING

Yuba County Motorplex, Limited Liability Company (YCM) shall monitor the headworks or the aerated pond receiving the influent for the following constituents according to the following schedule:

<u>Constituents</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sampling Frequency</u>	<u>Reporting Frequency</u>
Flow	gpd	Continuous	Daily	Monthly
Freeboard	Feet, ± 0.1	Measurement	Weekly	Monthly
Dissolved Oxygen	mg/l	Grab	Weekly	Monthly
Electrical Conductivity	μ mhos/cm	Grab	Weekly	Monthly
Total Dissolved Solids	mg/l	Grab	Weekly	Monthly
BOD ₅ ¹	mg/l	Grab	Weekly	Monthly
Total Nitrogen	mg/l as N	Grab	Weekly	Monthly
TPH ² - Gasoline	μ g/l	Grab	Weekly	Monthly
TPH - Diesel	μ g/l	Grab	Weekly	Monthly
TPH - Motor Oil	μ g/l	Grab	Weekly	Monthly

¹ 5-day, 20°C Biochemical Oxygen Demand

² Total Petroleum Hydrocarbons

POND MONITORING

YCM shall monitor each additional aeration pond and each storage pond for the following constituents according to the following schedule:

<u>Constituents</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sampling Frequency</u>	<u>Reporting Frequency</u>
Freeboard	Feet, ± 0.1	Measurement	Weekly	Monthly
Dissolved Oxygen	mg/l	Grab	Weekly	Monthly
pH	pH units	Grab	Weekly	Monthly
Electrical Conductivity	μ mhos/cm	Grab	Weekly	Monthly

LAND RECLAMATION DISPOSAL INFLUENT MONITORING

Land reclamation disposal area influent samples shall be representative of the volume and nature of the wastewater immediately prior to application of wastewater. If wastewater is not being applied to the land, then a representative storage pond sample shall be collected. Collection time and location of a grab sample shall be recorded. Influent monitoring shall include at least the following:

<u>Constituents</u>	<u>Units</u>	<u>Sample Type</u>	<u>Sampling Frequency</u>	<u>Reporting Frequency</u>
Flow	gpd	Continuous	Daily	Monthly
pH	pH units	Grab	Monthly	Monthly
Electrical Conductivity	μ mhos/cm	Grab	Monthly	Monthly
Settleable Solids	ml/l	Grab	Monthly	Monthly
BOD ₅	mg/l	Grab	Monthly	Monthly
Total Dissolved Solids	mg/l	Grab	Monthly	Monthly
Total Nitrogen	mg/l as N	Grab	Monthly	Monthly
Total Phosphorus	mg/l as P	Grab	Monthly	Monthly

STORAGE POND & DISPOSAL AREA MONITORING

YCM will monitor the pond, disposal area, and tailwater return system at a minimum for the following:

1. Weekly documentation of the pond storage capacity, including pond freeboard;
2. Daily influent flows to the disposal area, including date, time, and duration of use of disposal area;
3. The dates and duration of any events relating to a plant upset;
4. The dates and duration of any events relating to septic conditions (brown, gray, or black colored water) in the pond or disposal area;
5. The dates and duration of any observed floating petroleum product;
6. Weather conditions that may contribute to wastewater application migrating off of the disposal area;
7. The dates and duration of any nuisance odor events; and
8. Any other significant events or changes, which may have water quality implications.

The above data shall be recorded and submitted with the monthly monitoring reports.

DOMESTIC WELL AND WATER SUPPLY MONITORING

If access is granted by the landowner, then YCM shall sample the domestic well located at 3553 Morrison Road for the constituents as stated below. YCM shall also sample the water supply well at the wastewater treatment plant. Sampling station(s) shall be established where a representative sample of the makeup water supply(s) can be obtained. Monitoring shall include:

<u>Constituents</u>	<u>Units</u>	<u>Sample Type</u>	Sampling and Reporting
			<u>Frequency</u>
pH	pH units	Grab	Quarterly
Electrical Conductivity	μ mhos/cm	Grab	Quarterly
TDS	mg/l	Grab	Quarterly
Nitrates	mg/l as N	Grab	Quarterly
Total Coliform ¹	MPN/100 ml	Grab	Quarterly

GROUNDWATER MONITORING

YCM shall conduct monitoring of the perched water on the duripan and first groundwater beneath the duripan. Prior to construction, plans and specifications for groundwater monitoring wells shall be submitted to Board staff for review and approval. Sample collection and analysis shall follow standard EPA protocol. Each monitor well sample shall include at least the following:

<u>Constituents</u>	<u>Units</u>	<u>Sample Type</u>	Sampling and Reporting
			<u>Frequency</u>
pH	pH units	Grab	Quarterly
Electrical Conductivity	μ mhos/cm	Grab	Quarterly
TDS	mg/l	Grab	Quarterly
BOD ₅	mg/l	Grab	Quarterly
Chlorides	mg/l	Grab	Quarterly
Total Nitrogen	mg/l as N	Grab	Quarterly
Total Phosphorus	mg/l as P	Grab	Quarterly
Total Coliform ¹	MPN/100 ml	Grab	Quarterly
TPH - Gasoline	μ g/l	Grab	Quarterly
TPH - Diesel	μ g/l	Grab	Quarterly
TPH - Motor Oil	μ g/l	Grab	Quarterly
Elevation ²	feet, ± 0.1	Grab	Quarterly
Hydraulic Gradient	Feet/Feet	Calculated	Quarterly
Flow Gradient direction	Degrees	Calculated	Quarterly

¹ Number of dilutions may need to be adjusted, three or four dilutions recommended

² The elevation shall be used to determine the direction and gradient of groundwater flow. Gradient and direction of flow are to be calculated and reported monthly.

MONITORING AND REPORTING PROGRAM NO. 5-00-076
YUBA COUNTY MOTORPLEX AND AMPHITHEATER
YUBA COUNTY MOTORPLEX, LIMITED LIABILITY COMPANY
BILL GRAHAM ENTERPRISES, YUBA LIMITED LIABILITY COMPANY
YUBA COUNTY

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COLLECTION SYSTEM & FORCE MAIN MONITORING

YCM shall monitor the collection system, wet wells on its property, and the force mains on a monthly basis for pipe anomalies, cracks, overflows, or leaks. The force mains under crossing at the South Yuba Water District's Main Canal and Alfaro Lateral Canal shall be monitored for pipe anomalies, cracks, overflows, leaks, or the presence of sewage monthly. Monitoring of the under crossing is to be conducted visually through the vertical monitor piping installed into the annular space between the liner and the force main. All monitoring shall be noted on the operator's log and a copy submitted monthly to the Board.

BGE shall monitor its collection system, wet well, and force main on BGE property on a monthly basis for pipe anomalies, cracks, overflows, or leaks. All monitoring shall be noted on BGE's log kept at the amphitheater and a copy submitted monthly to the Board.

SLUDGE MONITORING

YCM shall collect a representative composite sample of sludge annually in accordance with EPA's *POTW Sludge Sampling and Analysis Guidance Document, August 1989*, and tested for the following metals:

Cadmium	Lead
Chromium	Nickel
Copper	Zinc

Sampling records shall be retained for a minimum of five years. A log shall be kept of sludge quantities generated and of handling and disposal activities. The frequency of entries is discretionary; however, the log shall be complete enough to serve as a basis for part of the annual report.

REPORTING

In reporting monitoring data, the Discharger shall arrange the data in tabular form so that the date, sample type (e.g., influent, effluent, etc.), and reported analytical result for each sample are readily discernible. The data shall be summarized in such a manner to clearly illustrate compliance with waste discharge requirements and spatial or temporal trends, as applicable. The results of any monitoring done more frequently than required at the locations specified in the Monitoring and Reporting Program shall be reported to the Regional Board.

As required by the California Business and Professions Code Sections 6735, 7835, and 7835.1, all Groundwater Monitoring Reports shall be prepared under the direct supervision of a Registered Engineer or Geologist and signed by the registered professional.

YCM shall submit the following monthly, quarterly, and annual reports:

Monthly Reports

Monthly Reports shall be submitted to the Regional Board by the 30th day of the following month. Monthly Reports for the months of March, June, September, and December may be submitted as part of the Quarterly Monitoring Report, if desired.

Quarterly Reports

The Discharger shall establish a quarterly groundwater-sampling schedule such that samples are obtained approximately every three months. Quarterly Monitoring Reports shall be submitted to the Regional Board by the 30th day of January, April, July, and October each year. The Quarterly Report shall include the following:

1. A narrative description of all preparatory, monitoring, sampling, and analytical testing activities. The narrative shall be sufficiently detailed to verify compliance with the WDRs, this MRP, and the Standard Provisions and Reporting Requirements. Field logs shall support the narrative for each well documenting depth to groundwater; parameters measured before, during, and after purging; method of purging; calculation of the casing volume; and total volume of water purged.
2. Calculation of groundwater elevations, an assessment of the groundwater flow direction and gradient on the date of measurement, comparison to previous flow direction and gradient data, and discussion of seasonal trends, if any.
3. A narrative discussion of the analytical results for all media and locations monitored, including spatial and temporal trends, with reference to summary data tables, graphs, and appended analytical reports (as applicable).
4. A comparison of monitoring data to the discharge specifications, groundwater limitations and surface water limitations, and explanation of any violation of those requirements.
5. Summary data tables of historical and current water table elevations and analytical results.
6. A scaled map showing relevant structures and features of the facility, the locations of monitoring wells and any other sampling stations, and groundwater elevation contours referenced to mean sea level datum.
7. Copies of laboratory analytical report(s).

Annual Monitoring Report

The Fourth Quarter Report (**due by 30 January of each year**) shall also serve as an Annual Monitoring Report. At a minimum, the Annual Monitoring Report shall include the following:

1. The contents of a regular Quarterly Report (i.e., monitoring results for the last groundwater and surface water monitoring event of the previous calendar year);
2. If requested by staff, tabular and graphical summaries of all monitoring data obtained during the previous year;
3. Information on the disposal of biosolids;
4. A discussion of compliance and the corrective action taken, as well as any planned or proposed actions needed to bring the discharge into full compliance with the waste discharge requirements;
5. A discussion of the long-term trends in the concentrations of the pollutants in the groundwater monitoring wells; and
6. A discussion of any data gaps and potential deficiencies/redundancies in the monitoring system or reporting program.

BGE shall submit the following monthly reports:

Monthly Reports shall be submitted to the Regional Board by the 30th day of the following month. The reports shall contain the results of the collection system monitoring.

YCM and BGE shall implement the above monitoring program as of the date of this Order.

Ordered by: _____

GARY M. CARLTON, Executive Officer

17 March 2000

(date)

INFORMATION SHEET

ORDER NO. 5-00-076

YUBA COUNTY MOTORPLEX AND AMPHITHEATER

Yuba County Motorplex (YCM) and Bill Graham Presents (BGE) is a 905-acre development, which includes a motorplex raceway, drag strip, 1.5 mile street circuit, and out-door amphitheater entertainment complex. Since activities are expected to take place year round, several support business and services such as motels, restaurants, fast food, and gas stations/mini-marts may be constructed on-site and they will utilize the wastewater treatment plant. This land development is proposed to generate nearly twenty million gallons per year of domestic wastewater at peak build out in the year 2010. Only domestic wastewater is to be treated at the plant.

All hazardous materials, oils, greases, fuels, cleaners, and solvents are to be containerized and handled off-site by a contract recycler/service vendor. YCM will have a spill prevention, response, containment, and spill cleanup waste disposal plan for all racing areas and business that use hazardous materials.

Only those businesses or vendors contained within or constructed on the designated parcels owned by YCM or BGE are to discharge to the wastewater treatment plant. Any future development, which requires lot splits and new landowners, will require review of the Order by the Board. If a threat to water quality is perceived or material change to the findings of the Order such as property ownership, the Board may reopen the Order for review and re-issuance. No other facilities such as campgrounds, parks, rest stations, gas stations, motels, restaurants, vendors, or other businesses located on other parcels not designated in the findings shall discharge to the wastewater treatment plant.

Maximum expected flow at build out from all facilities is nearly 575,000 gallons in one day and about 3 million gallons in one month. October is the month expected to generate this maximum flow. The wastewater is collected by gravity from the developments into wet wells. From the wet wells it is to be pumped to the on-site wastewater treatment facility via two force mains. One force main is dedicated to the BGE parcel and the other is for all other improvements. BGE will have the responsibility for the operation, maintenance, monitoring, and compliance with this Order for the collection system, wet well, and force main on BGE property.

The plant treatment train will be simple headworks followed by four aerated ponds and then to a holding pond. Final wastewater disposal will be accomplished via overland border check flood irrigation. All tailwater and storm water are to be returned to the holding pond. The construction of the wastewater treatment plant will take place in two phases. Phase Two will be completed in the year 2005.

The expected wastewater influent quality from the entertainment facilities and the required effluent water quality from the aerated pond treatment system are listed below:

Constituent	Influent (mg/l)	Effluent (mg/l)
Biological Oxygen Demand (BOD ₅)	300	30
Total Suspended Solids	300	60
Nitrogen	60	40
Phosphorus	20	14
Total Dissolved Solids	300	300

The plant will be fenced with placards posted notifying the public that wastewater is being treated at the facility. All tail water and storm water runoff from the disposal area will be contained and returned to the holding pond(s) for future land disposal applications. The application of wastewater to the land disposal area will be April through October. The all components of the treatment plant are required to have 100 foot set backs from property lines, surface water drainage courses, and agricultural wells and 500 foot set back from any drinking water supply wells. The plant and disposal area to be designed and operated to with stand the threat of inflow, wash out, or inundation from a floods, storms, or a winter season with 100-year return frequency. No discharges from the plant of any kind to surface waters are allowed.

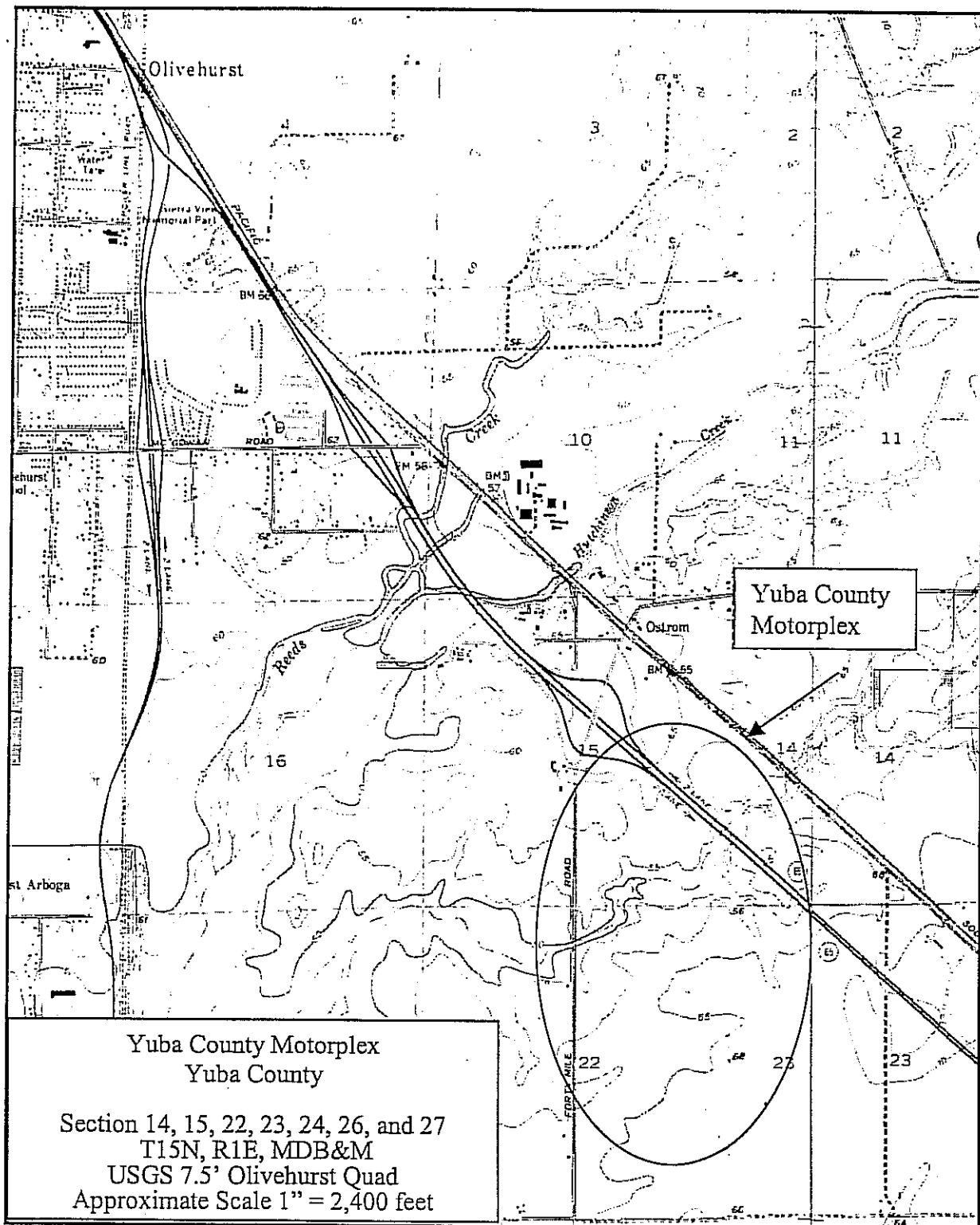
The wastewater applied to the disposal field will not be disinfected. The disposal field is to be managed by outside farming contractors who will cut and use the grass hay crop. The crop is expected to be used as fodder feed for farm animals off-site.

Groundwater quality background is to be established with groundwater monitoring wells 30 days prior to the activation of the facility and application of the wastewater. Groundwater monitoring of the perched water on the duripan as well as first groundwater beneath the duripan is required. The plant is to maintain operator's log, training records, MRP reports, and maintenance records on-site in the Operations and Maintenance Manual. The manual will include a sludge disposal plan as well as an emergency response and spill plan, which will be available for review during Regional Board inspection.

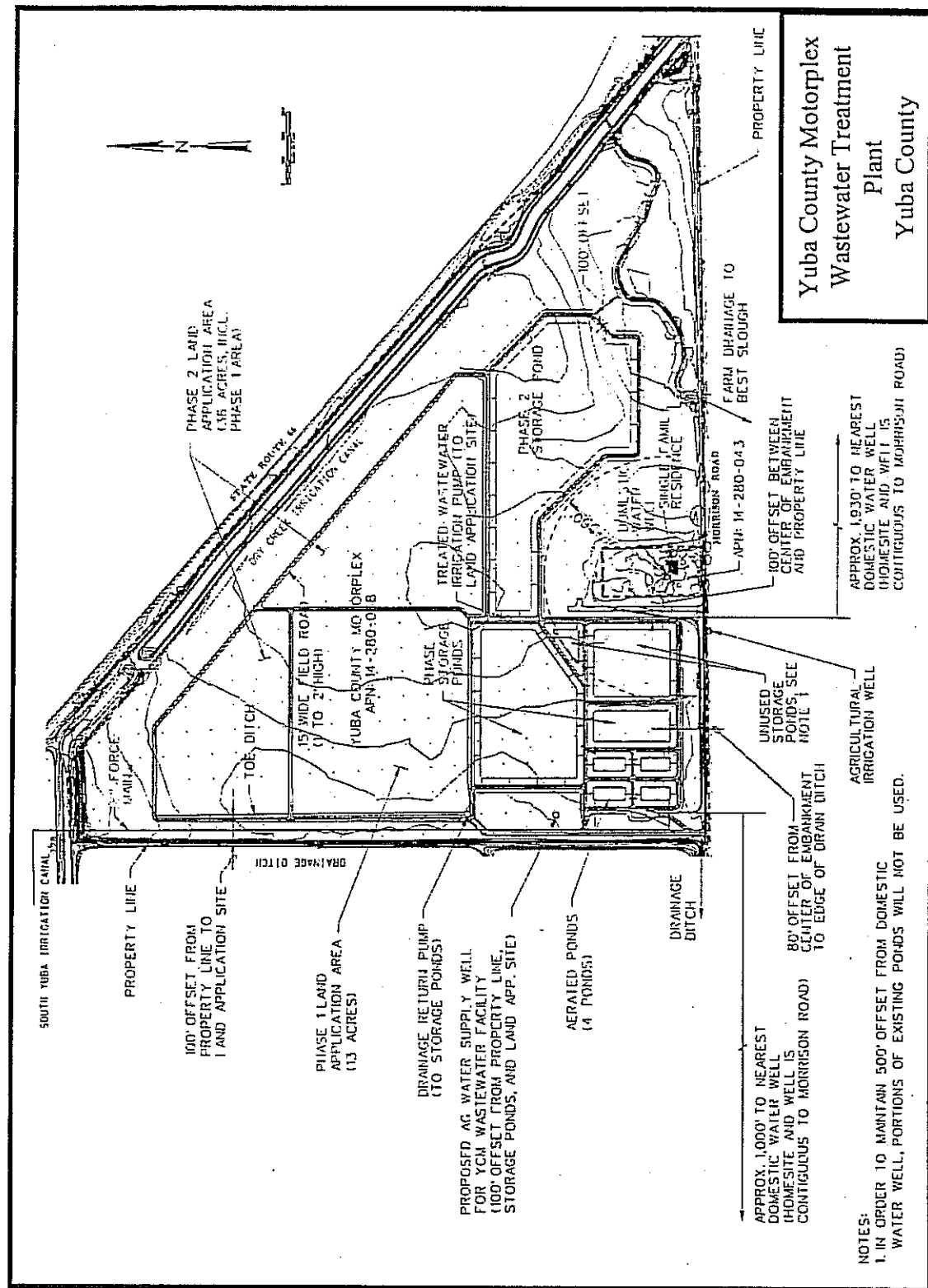
Surface water drainage is to unnamed tributary to Best Slough, which is tributary to the Bear River.

WASTE DISCHARGE REQUIREMENTS ORDER NO. 5-00-076
YUBA COUNTY MOTORPLEX, LLC
BILL GRAHAM ENTERPRISES, YUBA LLC
YUBA COUNTY MOTORPLEX AND AMPHITHEATER
YUBA COUNTY

Attachment A



Attachment B



Compacted Clay Liner Construction Quality Assurance (CQA) Program

I. Clay Borrow Material

Test	Method	Recommended Frequency 1 Test per Volume Shown	Required*/Recommended Minimum Criteria/Specification	Proposed Frequency	Proposed Criteria/ Specification	As-Built Frequency	As-Built Criteria/ Specification
Moisture	Oven Dried D2216	1,000 cy	n/a				
Particle Size	D422, D1140	1,000 cy	Minimum 30% pass No. 200 sieve *				
Lab Permeability	D5084-90 (At 90% & 95% max. density)	1,500 cy	<1x10 ⁻⁷ or <1x10 ⁻⁶ cm/s (prefer 10X lower than field)				
Atterberg Limits	D4318	5,000 cy	PI: 15 to 40				
Compaction Curves	Mod. Proctor D1557 Stand. Proctor D698	5,000 cy or change in material	n/a				
Soil Type	D2488, D2487	5,000 cy	CL, CI, SC *				

Note: Proposed frequencies, methods, & specifications that are significantly lower than recommended are indicated in bold italics.

* Required by CCR, Title 23, Division 3, Chapter 15.

Checklist prepared by Region 5-RWQCB (3/20/92) and modified from Table 10.1 of U.S. EPA Document EPA/600/2-88/052 (Lining of Waste Containment and Other Impoundment Facilities)

Compacted Clay Liner Construction Quality Assurance (CQA) Program

II. Clay Liner Construction Testing

Test	Method	Recommended Frequency 1 Test per Volume Shown	Required*/Recommended Minimum Criteria/Specification	Proposed Frequency	Proposed Criteria/ Specification	As-Built Frequency	As-Built Criteria/ Specification
Density & Moisture	Nuclear gage D2922	250 cy (5/ac/lift)	90 or 95% compaction at 2 to 5% over optimum moisture content				
Density	Sand Cone D1556 Balloon D2167	1,500 cy (1/ac/lift)	90 or 95% of maximum dry density				
Moisture	Oven D2216 (with cor. to Nuclear gage D2922)	1,500 cy (1/ac/lift)	2 to 5% > optimum moisture content				
Particle Size	D422, D1140	1,500 cy (1/ac/lift)	Minimum 30% pass No. 200 sieve *				
Lab Permeability	D5084-90 (At 90% & 95% max. density)	1,500 cy (1/ac/lift)	<1 x 10 ⁻⁷ or <1 x 10 ⁻⁶ cm/s (prefer 10X lower than field)				
Atterberg Limits	D4318	5,000 cy (1/ac/lift)	PI: 15 to 40				
Compaction Curves	Mod. Proctor D1557 Stand. Proctor D698	5,000 cy or change in material	n/a				
Field Permeability	SDRI (D5093) preferred	Test Pad	<1 x 10 ⁻⁷ or <1 x 10 ⁻⁶ cm/s *				
Clod Size	Observation	Continuous	< 1 inch				
Liner Thickness	Survey; Measurement	50 Foot Centers	Minimum 2 or 1 foot				

Note: Proposed frequencies, methods, & specifications that are significantly lower than recommended are indicated in bold italics.

* Required by CCR, Title 23, Division 3, Chapter 15.

Checklist prepared by Region 5-RWQCB (3/20/92) and modified from Table 10.1 of U.S. EPA Document EPA/600/2-88/052 (Lining of Waste Containment and Other Impoundment Facilities)

Compacted Clay Liner Construction Quality Assurance (CQA) Program

III. Drainage Layer Material Evaluation and Construction Testing

Test	Method	Recommended Frequency 1 Test per Volume Shown	Required/Recommended Minimum Criteria/Specification	Proposed Frequency	Proposed Criteria/ Specification	As-Built Frequency	As-Built Criteria/ Specification
A. Material Evaluation:							
Particle Size	D422, D1140	1,500 cy (Drain.Layer) 100 cy (Sump Gravel)	Maximum 3% pass No. 200 sieve Maximum 3% pass No. 200 sieve				
Lab Permeability	SW-846 Method 9100 Constant Head	3,000 cy (Drain.Layer) 100 cy (Sump Gravel)	>0.1 cm/sec >1.0 cm/sec				
Soil Type	D2488, D2487	Continuous	GP				
B. Construction Testing:							
Particle Size	D422, D1140	1,500 cy (Drain.Layer) 100 cy (Sump Gravel)	Maximum 3% pass No. 200 sieve Maximum 3% pass No. 200 sieve				
Lab Permeability	SW-846 Method 9100 Constant Head	3,000 cy (Drain.Layer) 100 cy (Sump Gravel)	>0.1 cm/sec >1.0 cm/sec				
Soil Type	D2488, D2487	Continuous	GP				

Note: Proposed frequencies, methods, & specifications that are significantly lower than recommended are indicated in bold italics.

* Required by CCR, Title 23, Division 3, Chapter 15.

Checklist prepared by Region 5-RWQCB (3/20/92) and modified from Table 10.1 of U.S. EPA Document EPA/600/2-88/052 (Lining of Waste Containment and Other Impoundment Facilities)

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